

		Therefore, it is incumbent upon the court and Counsel to advise the Plaintiff PHA Professional Services, Inc.; Plaintiff SC Equipment Company, LLC; or their representatives of the necessity of obtaining representation and to ensure that they obtain representation. (See <i>Rogers v. Sonoma County Municipal Court</i>, <i>supra</i>, 197 Cal.App.3d at p. 1318.) The court will issue an order to show cause regarding dismissing Plaintiff PHA Professional Services, Inc. and/or Plaintiff SC Equipment Company, LLC from the Complaint, and will order that Counsel serve Plaintiffs PHA Professional Services, Inc. and SC Equipment Company, LLC with the order relieving counsel, notice of the order to show cause re: dismissing the plaintiffs for failure to retain counsel, and notice of this ruling. Counsel shall give notice of this ruling in the manner ordered by the court.
6	Habibi vs. Yang-Davies 30-2025-01471995	<u>Motion to Quash</u> Defendant Brian Davies’ Motion to Quash Proof of Service of Summons is GRANTED. <u>Pending Motion</u> Defendant Brian Davies moves to quash service of process of the summons in in this action. <u>Standard to Quash Service of Process</u> A court lacks personal jurisdiction over a defendant if there has not been proper service of process upon that defendant. (See Code Civ. Proc., § 410.50 [“A summons may be served by personal delivery of a copy of the summons and of the complaint to the person to be served.”]; <i>Ellard v. Conway</i> (2001) 94 Cal.App.4th 540, 544 [compliance with statutory procedures for service of process is essential for court to establish personal jurisdiction over defendant].) Therefore, “[a] defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for

		one or more of the following purposes: (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her. . . .” (Civ. Proc. Code, § 418.10, subd. (a); see <i>Board of Supervisors v. Superior Court</i> (1994) 23 Cal.App.4th 830, 855, fn. 4.) Generally, “once a defendant files a motion to quash the burden is on the plaintiff to prove by a preponderance of the evidence the validity of the service and the court’s jurisdiction over the defendant.” (<i>Bolkiah v. Superior Court</i> (1999) 74 Cal.App.4th 984, 991; see also <i>Summers v. McClanahan</i> (2006) 140 Cal.App.4th 403, 413 [same].) However, this burden shifts when a properly executed proof of service has been filed. “The return of a [registered] process server [] upon process or notice establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return.” (Evid. Code, § 647; see <i>Floveyor Int’l, Ltd. v. Superior Court</i> (1997) 59 Cal.App.4th 789, 795; <i>American Exp. Centurion Bank v. Zara</i> (2011) 199 Cal.App.4th 383, 390 [“Evidence Code section 647 provides that a registered process server’s declaration of service establishes a presumption affecting the burden of producing evidence of the facts stated in the declaration.”].) In this case, however, the Proof of Service attests that Defendant Brian Davies was served with the Summons but not with the Complaint. (See ROA #21: see also Def. Brian Davies Decl. Regarding False Proof of Service (Davies Decl.), ¶ 5.) Civil Procedure Code section 415.10 states that “[a] summons may be served by personal delivery of a copy of the summons <i>and of the complaint</i> to the person to be served.” (Code Civ. Proc., § 415.10, italics original.) Accordingly, “[a] copy of the complaint must be served with the summons” and “when a summons was served without a copy of the complaint the court was without jurisdiction.” (<i>McGinn v. Rees</i> (1916) 33 Cal.App. 291, 293.) Plaintiff contends that “[t]he process server, Hossain Hossaini, properly served the Summons and Complaint exactly as explained in the Proof of Service” and “[a]ll required documents were
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		properly served to the Defendant.” (Opp’n to Mot. to Quash at p. 2.) However, Plaintiff lacks personal knowledge and foundation to make these statements because service was effectuated by Hossain Hossaini and not Plaintiff. Accordingly, service of process was not completed as required by statute in this case and the court must grant the motion to quash. <u>Demurrer</u> Defendant Brian Davies’ Demurrer to Complaint is taken OFF CALENDAR as moot. <u>Pending Motion</u> Defendant Brian Davies’ demurs to the Complaint filed by Plaintiff Ghulam Reza Habibi. <u>Standard for Demurrer</u> “The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer . . . to the pleading on any one or more of the following grounds: (a) The court has no jurisdiction of the subject of the cause of action alleged in the pleading. (b) The person who filed the pleading does not have the legal capacity to sue. (c) There is another action pending between the same parties on the same cause of action. (d) There is a defect or misjoinder of parties. (e) The pleading does not state facts sufficient to constitute a cause of action. (f) The pleading is uncertain. As used in this subdivision, “uncertain” includes ambiguous and unintelligible.
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		(g) In an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct. (h) No certificate was filed as required by Section 411.35." (Code Civ. Proc., § 430.10.) In this case, the court has quashed service of process of the summons. Therefore, Defendant Brian Davies is not required to respond to the Complaint. As a result, the Defendant Brian Davies' demurrer to the Complaint is moot. (See <i>McClatchy v. Coblentz, Patch, Duffy & Bass, LLP</i> (2016) 247 Cal.App.4th 368, 375 [trial court may dismiss demurrer as moot after granting motion to quash].) Defendant Brian Davies shall give notice of this ruling.
7	Singh vs. Montano 30-2024-01403527	<u>Motion for Sanctions</u> Plaintiff Yashdeep Singh's Motion for Discovery Sanctions; Request for Terminating Sanctions or in the Alternative for Order Compelling Deponent Mary Montano to Attend and Testify at Deposition and Monetary Sanctions in the Amount of \$5,254.50 is GRANTED in part and CONTINUED in part to August 17, 2026 at 10:30 a.m. in Department N15. Defendant Mary Montano is ORDERED to appear for deposition at a mutually agreeable date and time, and in the manner specified in the Plaintiff's Fifth Notice of Deposition of Mary Montano, within 21 days of this ruling. No later than August 12, 2026, Plaintiff Yashdeep Singh and Defendant Mary Montano shall file and serve a declaration stating under penalty of perjury whether Defendant Mary Montano has appeared for her deposition and if she has not, the reasons for her failure to do so. Defendant Mary Montano is ORDERED to pay to